

Harikesh Yadav v. State of U.P.

Allahabad High Court · Division Bench · 6 June 2016 · Writ-C No. 27918 of 2016 · **Writ disposed of; petitioner relegated to Clause 6.14 instalments.**

HEADNOTE

A writ challenging recovery of admitted electricity arrears is not to be entertained where the consumer seeks only instalments on the ground of financial distress. Clause 6.14 of the U.P. Electricity Supply Code, 2005 permits the licensee to extend instalments only to consumers in financial distress; the consumer must approach that authority.

FACTUAL SUMMARY

Harikesh Yadav challenged a recovery certificate dated 22 February 2016 issued by the Tehsildar, Sagari, Azamgarh, pursuant to a 10 February 2016 recommendation of the Executive Engineer, Electricity Distribution Division-II, Azamgarh. He approached the Allahabad High Court seeking to set aside that recovery. At the hearing he emphasised financial distress and asked that outstanding electricity dues be allowed to be paid in instalments. The Division Bench recorded that electricity arrears were outstanding and recovery proceedings had already been initiated.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Where electricity arrears are outstanding and recovery has been initiated, a writ seeking instalments on the ground of financial distress is not to be entertained. The consumer must approach the authority under Clause 6.14 of the U.P. Electricity Supply Code, 2005, which permits the licensee to extend instalments only to consumers in financial distress.

¶ 3-4

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Petitioner in financial distress seeking instalments against admitted arrears was sent to the Clause 6.14 licensee facility rather than given writ relief. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 22 FEBRUARY 2016 RECOVERY CERTIFICATE AND WHETHER INSTALMENTS SHOULD IN FACT BE EXTENDED

Writ not entertained on merits; petitioner left to approach the Clause 6.14 authority. ¶ 4